

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

2. Nature and/or Description of the Action Being Approved

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

Lease of 11 miles of virtual local area network (VLAN) connectivity for the Lenel Electronic Security System (ESS) between the Trumbo Point outlying annex alarm points to the located at Naval Air Station Key West Boca Chica, Bldg. A324. The connection is critical to the proper operation of the Intrusion Detection System (IDS) for the explosive magazine at Trumbo Point.

Due to NAS Key West location, AT&T owns and operates all telecommunication infrastructure and provides connectivity of communication signals for the Electronic Security System (ESS). This request is to lease 11 miles of virtual local area network (VLAN) that supports the NAS Key West N3AT Lenel Intrusion Detection System (IDS) alarms located on Fleming Key annex for "EXPLOSIVE MAGAZINE" buildings: F-21, F-22, F-23, F-24, F-25, F-26 and F-2, back to the Boca Chica annex building A-324 room 12 (DISPATCH) alarm panel. Impact that the alarms for Fleming Key Trumbo Point annex for the "EXPLOSIVE MAGAZINE" buildings: F-21, F-22, F-23, F-24, F-25, F-26 and F-2 will not have connectivity.

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
0.00	0.00	0.00	0.00
Subtotals 0.00	0.00	0.00	0.00
			Total 0.00

4. Statutory Authority Permitting Other Than Full and Open Competition

Additional Information Regarding Statutory Authority if Applicable

Procurement Request/Solicitation/Purchase Order Number:

Control Number:

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required date/period of performance

Please reference item 3 above (Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value)

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE

Yes

1. Restrictive Rights

Yes

The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.

Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the need.

AT&T provides sole means of connectivity for the intrusion detection from Fleming Key Weapons Magazines to IDS server at Bldg. A-324, Boca Chica. This signal is then transmitted via PSNet to Regional dispatch located at Naval Air Station Jacksonville, Florida. AT&T owns the T-1 lines, located at NBCCO, F15 Fleming Key Rd and is leasing them to the U.S.

- ☐ AT&T is currently providing connectivity services to these points for the Navy
- ☐ Manholes (MH) & hand holes (HH) are owned by the Navy
- ☐ AT&T owns the equipment inside the Boca Chica remote switch
- ☐ AT&T does the maintenance on the equipment in the remote switch
- ☐ AT&T provides the placing and splicing of the fiber in the MH/HH and to the Navy buildings

In summary, AT&T is providing connectivity services, AT&T owns the remote switching equipment and fiber infrastructure to support the services. AT&T is the only LEC to provide maintenance services for these facilities.

2. Exclusive Licensing Agreements

No

The item or service is only available from the Original Equipment Manufacturer (OEM), or the authorized distributor or technical representative for the OEM.

B. BRAND NAME

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product made by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or are modified to meet, the agency's needs.

C. UNUSUAL AND COMPELLING URGENCY

No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine process result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.1014). Describe how market research indicates other similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance: 10/01/2024 to 09/30/2025
3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, ar circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.

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LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval